



Source: YouTube Gaming

YouTube Gaming

Like Twitch, YouTube also allows fair use of content which allows people to use copyrighted content. But according to experts, live streams of music, video content etc. technically do not come under the purview of fair use on this platform. While live streaming, YouTube scans the stream for any third-party content, including all forms of copyrighted content. Once identified, YouTube will either issue a warning to the individual or replace the live stream with a placeholder image. If live streams are later archived, and upon scanning YouTube finds certain copyrighted content, the video can immediately be taken down. There have been cases whereupon receiving two to three warnings; these individuals are not allowed to live stream for a period.

However, it can be argued that all these rules do not apply to video game live streaming most of the time. According to fair use rules, video gamers live streaming their gameplay technically should not count, because they are reacting and expressing themselves while playing the games.

Facebook Gaming

The most prominent social media platform, Facebook, has terms of services that apply to its Facebook Live Audio, that users have to abide by. Any copyrighted material cannot be shared or live streamed without permission. The users doing so will be liable to the content creator and could violate the agreement.